

GENERAL ASSEMBLY OF NORTH CAROLINA
SESSION 2025

FILED SENATE
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PRINCIPAL CLERK

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SENATE BILL DRS45318-ML-4B

Short Title: Enhanced Penalty/Dom. Violence Strangulation. (Public)

Sponsors: Senators Bradley, Mohammed, and Batch (Primary Sponsors).

Referred to:

A BILL TO BE ENTITLED
AN ACT TO INCREASE THE PUNISHMENT FOR COMMITTING ASSAULT BY
STRANGULATION.

The General Assembly of North Carolina enacts:

SECTION 1. G.S. 14-32.4 reads as rewritten:

"§ 14-32.4. Assault inflicting serious bodily injury; strangulation; penalties.

(a) Offense Involving Serious Bodily Injury. – Unless the conduct is covered under some other provision of law providing greater punishment, any person who assaults another person and inflicts serious bodily injury is guilty of a Class ~~F-E~~ felony. ~~"Serious bodily injury" is defined as bodily injury that creates a substantial risk of death, or that causes serious permanent disfigurement, coma, a permanent or protracted condition that causes extreme pain, or permanent or protracted loss or impairment of the function of any bodily member or organ, or that results in prolonged hospitalization.~~

(b) Offense Involving Physical Injury. – Unless the conduct is covered under some other provision of law providing greater punishment, any person who assaults another person and inflicts physical injury by strangulation is guilty of a Class ~~H-G~~ felony.

(c) Offense Generally. – Unless the conduct is covered under some other provision of law providing greater punishment, any person who assaults another person by strangulation is guilty of a Class H felony.

(d) Definitions. – The following definitions apply in this section:

(1) Serious bodily injury. – Bodily injury that creates a substantial risk of death, or that causes serious permanent disfigurement, coma, a permanent or protracted condition that causes extreme pain, or permanent or protracted loss or impairment of the function of any bodily member or organ, or that results in prolonged hospitalization.

(2) Strangulation. – Impeding the normal breathing or circulation of blood of another person by applying pressure to the throat or neck of the person or by obstructing the nose and mouth of the person."

SECTION 2. This act becomes effective June 1, 2025, and applies to offenses committed on or after that date.



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